

25NWLC09224 25NWLC09224

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-17

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Case Number: 25NWLC09224 Hearing Date: September 17, 2026 Dept: Y

25NWLC09224: FIRST NATIONAL BANK OF OMAHA, A NATIONAL BANKING ASSOCIATION vs MARCUS W MASSEY

Tentative Ruling:

The Court has read and reviewed all moving documents filed by Plaintiff First National Bank of Omaha, N.A. ("Plaintiff") in support of its motion for summary judgment, including the separate statement and supporting evidence.

Plaintiff's motion for summary judgment was filed on June 12, 2026 and set for hearing on August 17, 2026. No opposition has been filed by Defendant Marcus W. Massey ("Defendant").

The Court finds that Plaintiff has met the initial burden of showing that there are no defenses to its cause of action for breach of contract by proving each element of the cause of action entitling Plaintiff to summary judgment.

Plaintiff has shown with admissible evidence that Defendant entered into a personal loan contract with Plaintiff and Plaintiff provided Defendant with personal loan proceeds in the amount of \$30,000, paid directly to Defendant; Plaintiff rendered and mailed statements of account to Defendant; Defendant made payments on the personal loan account and made no objections to the statements sent to him; Defendant stopped making payments on the personal loan account on December 13, 2024; and Defendant still owes Plaintiff a balance of \$24,629.41 on the account. (Plaintiff's Separate Statement, Undisputed Material Facts Nos. [UMF] 1-5.) The Court notes that Separate Statement Undisputed Material Fact No. 4 appears to have a typo indicating that Defendant stopped making payments on "December 13, 2025," but the evidence demonstrates that Defendant stopped making payments in 2024. The last account statement that was sent to Defendant was in January 2025.

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to any of the elements of the causes of action for breach of contract or that there is any defense thereto required by Code of Civil Procedure section 437c(p)(1).

The Court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS Plaintiff's Motion for Summary Judgment as to its cause of action for breach of contract.

Judgment is hereby entered in favor of Plaintiff First National Bank of Omaha, N.A. and against Defendant Marcus W. Massey in the principal sum of \$24,629.41, plus reasonable attorney's fees and costs.

Plaintiff must submit a Memorandum of Costs and a declaration in support of reasonable attorney's fees as well as a Proposed Judgment for the Court's review and signature.

Plaintiff to give notice.